GUPCO'S TERMS AND CONDITIONS

Tender No.: SB-MAT-EC-24-034-AKF

For the Supply of Pipes & Fittings for R/SH Area

The following terms and conditions will be reflected in the purchase order:

1. **Definitions:**

"**Purchase Order**" shall mean the Purchase Order, GUPCO General Purchase Order Terms and Conditions and all attachments, exhibits and documents referenced therein and all terms and conditions thereof, together with any subsequent amendments thereto.

"**Company**" shall mean Gulf of Suez Petroleum Company ("GUPCO") or its assignees.

"**Supplier**" means the person, firm, company or corporation to whom the Purchase Order is issued, who shall be deemed to be an independent supplier with respect to the Purchase Order and neither the Supplier, nor any Sub-Supplier, nor the employees, agents, representatives of Supplier, or Sub-Supplier, shall be deemed to be the employees, agents, representatives or servants of the Company.

"**Materials**" shall mean design, manufacture, supply and delivery, of any goods, materials, machinery, equipment, article, items, services, to be supplied to the Company in accordance with the Purchase Order, including any documents, drawings, data and the like, relating thereto.

"**Sub-Supplier**" means any person, firm, company or corporation, to whom the Supplier subcontracts any of the Materials, or part thereof or work associated therewith, called for in the Purchase Order, as approved by the Company.

"**Party**" or "**Parties**" shall mean individually Company or Supplier or collectively as both Company and Supplier.

"Company's Freight Forwarder" shall mean DHL GLOBAL FORWARDING as detailed below:

DHL GLOBAL FORWARDING
Attn: DGF control Egypt, E-mail: **DGFEG.IP.ControlTower@dhl.com**; Tel: +202 2696 9849, fax: +202 2696 9949 or +2022696 9900 Egypt

2. **Pricing and Delivery Term:**
   - Any reference in the Purchase Order to "Incoterms"; as specified under General Purchase Order Terms and Conditions.
   - The Supplier shall be liable for any loss or damage to the materials, however caused, until delivered, when the risk shall pass to GUPCO.
   - In case of **DPU (Incoterms 2020) or Egypt Free Zone**, The Supplier shall bear all costs and Risks involved in bringing the materials and unloading the material at Egypt discharge port ''Quay''. Supplier (s) shall provide statement evidencing that the unloading cost already paid at the loading port.
   - If this order calls for additional services to be performed after delivery, Supplier shall retain title and risk of loss and damage to the Items until the additional services have been performed. If Supplier is authorized to invoice GUCPO for Items upon shipment or prior to the performance of additional services, title to the Items shall vest in GUCPO upon payment of the invoice, but risk of loss and damage shall pass to GUPCO when the additional services have been performed. Except for loss occasioned by gross negligence or willful neglect of GUPCO or its customer.

3. **Packing and Fumigation:**
   - The Materials shall, where required, be carefully packed and protected to ensure adequate protection, taking into account any special requirements contained in the Purchase Order.
   - Each Item shall be suitably packaged for shipment to prevent any loss and damage.
   - The cost of packing, boxing and/or crating, carriage, etc., is included in the price specified on the face of the Purchase Order, unless otherwise specifically agreed to in the Purchase Order. For export packing, all wooden packaging materials must be fumigated and identified with a fumigation stamp prior to shipment.
   - The protection and packing are deemed to be non-returnable, unless otherwise agreed in writing by Company.
   - For Materials delivered to Company's Freight Forwarder (FCA, FOB or Ex-Works), the prices are inclusive of domestic packing only and exclude export packing, which shall be done by the Company's Freight Forwarder.

4. **Origin of Materials:**
   - Supplier must indicate the name of manufacture and identify the country of origin for each Item to be supplied. Supplier shall source all pressure containing/loading bearing materials from suppliers in major industrialized countries. Full traceability of materials will be required.
   - Post award, the sources of manufacture must be those specified by Supplier in the bid and subsequently referenced in the purchase order. No alternate source of manufacture is permissible without the prior approval of GUPCO.
   - Unless mutually agreed to the contrary, the required Materials purchased for GUPCO is limited to the one of the countries listed below:
     USA, Japan, Western Europe as follows List:
     (Norway – Sweden – Denmark – Finland – Germany – Austria – Switzerland – Italy – Portugal – Spain – France – Belgium – United Kingdom "England, Scotland, Wales, Northern Ireland" – Ireland – Greece – Iceland – Luxemburg – Netherlands).

Note In case materials of origin proposed is from countries outside the above list; it will be subject to the approval of GUPCO QA/QC and the Supplier is required to submit to GUPCO the following documents for review and approval prior to placement of a purchase order:

1. **The Name of manufacturer.**
2. **Company Approvals:**

- ISO 9001:2008 - API Approvals - Client List applicable to the Petrochemical Industry - Any other relevant Approvals

5. **Quantities:**
   - Unless otherwise agreed by the Company, the quantities supplied must be complete and equal the quantities ordered and specified in the Purchase Order (including any partial shipment delivery agreed by Company and Supplier). Company shall not be obligated to accept any shipment received in excess of the quantity specified in the Purchase Order. Materials delivered in error, or in excess of the quantity called for, may at the Company's option, be returned to the Supplier, at the Supplier's expense. Risk of loss and return shipping damages shall be borne by the Supplier.
   - Company has the right to increase/decrease quantities of any items specified in the Purchase Order by up to 30% of each item with the same price.
   - Tolerance in Lengths/Quantity For Tubular /Pipeline"/Cables/ Chemical (as the case may be)
     - Purchase order final value shall be defined by the actual quantities requested by Company and unit price set forth by the Purchase Order, However the Max. accepted tolerance in lengths/Qty. by Company is Plus (+)/Minus (-) 3%.
     - The additional lengths/Qty. should be issued by the Supplier in separate invoice and to use the same PO number noting that the payment of the additional lengths/Qty. shall be after final receipt at Company Site

6. Forwarding, Shipping and Documentation Instructions:

Supplier to provide GUPCO Custom Dept. and Follow Up Team with applicable confirmations covering PO / quantity/items delivered to Company in due time to enable GUPCO to follow up the handling of shipping cited order to avoid the delay of delivery. The following E-mails addresses of GUPCO Shipping and Customs Dept. and follow up team:

- E-mail: desokya@gupco.net (Shipping & Custom Department)
- E-mail: abbasnh@gupco.net (Shipping & Custom Department)
- E-mail: shaabanh@gupco.net (Shipping & Custom Department)
- E-mail: hamedak@gupco.net (Follow up Department)

Note: Subsequent claims resulting from failure to follow the following procedure will not be entertained by GUPCO.
In addition, supplier will be charged by all Demurrage and/or storage fees in addition to any other cost.

Please do not ship any type of material related to OCTG (Casing, Tubing and Drive Pipe) inside box container otherwise supplier will be charged by all Demurrage and/or storage fees in addition to any other cost.

A. For ordered Materials to be delivered to Company's Freight Forwarder (FCA, FOB or Ex-Works)

- Once the **complete order items** are ready for collection/ready for delivery, Please contact Company's Freight Forwarder prior the delivery of goods for calling forwarded Instructions. **(Unless otherwise specifically agreed to in the Purchase Order, the partial shipment will not be accepted)**
- Notice of Readiness to Company's Freight Forwarder prior to delivery. The Notice of Readiness shall include the following information:
- Purchase Order number, item numbers and quantities
- Supplier name, address and contact person (As stated on the face of the Purchase Order)
- Location of consignment (specified in the PO)
- Description of Materials and part numbers
- Proposed mode of transportation by ocean/air (As stated on the face of the Purchase Order)
- Number of packages
- Approximate weight and dimension
- Destination (As stated on the face of the Purchase Order)
- Country of origin
- **The invoice issued by the supplier, including the detailed description and value of the materials**
- Packing List
- Certificates as per clause no….

B. For ordered Materials to be shipped by Supplier directly to Egypt.

In order to allow GUPCO obtain EGPC (Governmental) customs clearance approvals and to avoid the any Demurrage and/or storage fees. Supplier shall follow the following instruction:

- Unless mutually agreed to the contrary, once the Materials are ready for Shipment, Supplier MUST send a written Notice of Readiness to GUPCO's Shipping and Custom Dept. at least one week prior shipping. The Notice of Readiness shall include the following information:
- Purchase Order number, item numbers, value and quantities
- Supplier name, address and contact person (As stated on the face of the Purchase Order)
- Location of consignment (as specified in the PO)
- Description of Materials, part numbers and value
- Proposed mode of transportation by ocean/air (As specified in the PO)
- Number of packages
- Approximate weight and dimension
- Destination (As specified in the PO)
- Country of origin
- The invoice issued by the supplier, including the detailed description and value of the materials.
- Packing List
- Certificate of insurance
- Certificates as per clause no….
- Clean on board Bill of lading marked FREIGHT PREPAID (For ocean Freight) or Airway bill- AWB "For airfreight"
- **Supplier's statement evidencing that -at least- three (3) original of clean on board bill of lading marked FREIGHT PREPAID plus non-negotiable copy of all shipping documents have been sent directly to GUPCO by courier two weeks before the vessel's arrival date. Relative courier receipt to be submitted along with shipping doc. for negotiation.**
- Bill of lading must be showed the following:
  - Shipper: The name of Supplier as stated in the purchase order.
  - Consignee Name:
    Gulf Of Suez Petroleum Company [GUPCO]
    Palestine Street – 4th Sector
    New Maadi – P.O Box: 2400
    Cairo 11511, Egypt
- 14 days Free Demurrage and storage
- Purchase Order number and consignee name must be stated clearly on all shipping documents.
- Each package should contain relevant packing list indicating items description, part numbers, quantities, weight and dimensions.
- Supplier shall arrange shipment to Egypt seaport directly, do not consolidate with other shipments, and don't use any local agent for shipment companies. (Only use master B/L)
- For dangerous and hazardous shipments, packing and delivery must be in accordance with IATA/ICAO regulations and technical instructions.

C. ACID Requirements:

- The supplier (Exporter) must be registered at CARGO-X block-chain platform
- The supplier is responsible to prepare and send the final set of shipping documents
- The supplier is the only one responsible to upload the following documents through cargo X:
  - Commercial Invoice included ACID no (GS1/ PN and HS Code for Each line item) – electronic "XLS" & PDF
  - Packing List (Included: ACID no.) – PDF
  - Final Bill of Lading (Included: ACID no.) – PDF
  - Certificate of Origin – PDF
  - Safety Data Sheet / Certificate of Analysis – PDF
  - Any other needed Certificate – PDF

Note: Subsequent claims resulting from failure to follow the above instruction will not be entertained by GUPCO. In addition, supplier will be charged by all Demurrage and/or storage fees and any other related cost.

- The supplier must send the shipping invoice including the following information two weeks before shipping materials procedure in order to allow GUPCO obtain the ACID to avoid reject the materials at the Egyptian ports:
  - Company full name
  - Company full address
  - ZIP code / Postal code
  - Telephone Number / Mobil Number
  - Contact Person / Telephone Number
  - E-mail / Website
  - VAT / Registration Number
  - Port of loading.
  - Port of discharge.
  - HS code for each item.
  - Purchase Order Number
  - ETA & ETD
  - POL & POD

7. Invoicing and Payment Terms:

- Unless otherwise specified by Company, The payments shall be 100% (One Hundred Percent) **net within 30 days**, Company shall pay all true and correct invoices **net 30 days**, from the invoice receiving date at GUPCO Finance Department (Registration Group) against the presentation of the following Documents:
  - Original correct invoice covers the total value;
  - Original itemized packing list;
  - Copy of F.C.R (Forwarder Certificate of Receipt) issued by Company's Freight Forwarder or Copy shipping document along with required certificates or Company receiving notes.
  - A separate invoice shall cover any additional costs rather than the material cost.
- The prices in the Purchase Order shall apply (without variation) for both the period stated, if applicable, and/or the stated quantity of Materials and shall not be subject to any escalation.
- Unless otherwise agreed by the Company, partial delivery will not be considered and the invoice will not be paid until completing the balance of the ordered items (even if the partial delivery were accepted/received by the Company).
- In the event that Company disputes an invoice or part thereof, Company shall within 20 (twenty) days of receipt thereof notify Supplier in writing of the invoice or part thereof so disputed and specifying the reason therefore. Payment of such disputed invoice shall be withheld until settlement of the said dispute. Such payments so withheld shall not be subject to interest charges.
- Payment by Company of Supplier invoices shall be without prejudice to Company's rights subsequently to challenge the correctness thereof.
- Payment by Company of any account submitted by Supplier shall not discharge or release Supplier from any of its obligations under the Purchase Order or be deemed approval or acceptance of Materials covered by such account.
- One (1) original and three (3) copy invoices shall be expressed in English delivered to the following address:
  Gulf of Suez Petroleum Company (GUPCO)
  Palestine Street, 4th Sector, New Maadi, Cairo, Egypt
  P.O. Box 2400 Cairo, Egypt
  Attention: Financial Department – Invoice Registration Group
- To ensure efficient processing and payment, invoices shall include, as a minimum, the following information:
  - Invoice number and date
  - Exact legal names of Supplier and Company
  - Supplier's code number
  - Currency of payment as indicated in the Purchase Order
  - Description of Materials and quantities delivered
  - Purchase Order number
  - Bank details
  - Tax references (if relevant)
  - Supplier's address
- Any invoice should cover one Purchase Order only.
- Any change in payment / banking details or address from previous payment shall be prepared on Supplier's letterhead and an original shall be sent to Company.
- Supplier should specify the method of payment by cheque or by wire transfer.
- For wire transfer purposes , Supplier must indicate the following in the invoice:
- bank name , bank account #, ABA #, routing #, sort code, Chips # and Swift code
- Supplier will be charged by $50 for each wire transfer fee.
- In case of LC is required, Supplier should confirm by their technical offer that the delivery period (contractual delivery Date) to be computed from the date of fax award not from the date of receipt the required LC.

8. Taxes:
Supplier agrees to pay all taxes of whatever nature applicable to Supplier at his country and connected with the performance of this Purchase Order.

9. Certification:
The following certificates shall be delivered to Company with the ordered materials, including but not limited to:

- Certificate of origin;
- Certificate of compliance/conformity;
- Certificate of Manufacture;
- Analysis certificate;
- Load test certificate. (where applicable)
- Mill test certificate. (where applicable)
- Materials Certification and Heat Treatment (where applicable)
- Product information bulletin; (where applicable);
- Materials traceability, all materials should be supplied complete with proof of authenticity (certification of authenticity, original invoices or traceable written evidence from Manufacture.
- The certificates 3.2 for all Pipes Line

10. Late Delivery:

- In case Supplier fails to comply with the delivery date stated in the Purchase Order, liquidated damages will be applied at a rate of 1% of the total Purchase Order value for each week of delay up to a maximum deduction of 5% of the total order value. The first week of delay shall be free of charge.
- Liquidated damages shall be calculated from the contractual delivery date indicated in the Purchase Order up to the date of Forwarder Certificate of Receipt (FCR) in the case of FCA Freight Forwarder (also Ex-Works or FOB deliveries).For CIF, CFR, CPT, and CIP deliveries, liquidated damages shall be calculated up to the bill of lading (B/L) date or airway bill (AWB) date.
- In case Company and Supplier agree on partial delivery, liquidated damages shall only apply on the value of the delayed portion as determined by the Company.
- If the above-mentioned maximum limits are exceeded, the Company will have the right to cancel the order, even in part, or the implementation thereof at the Supplier cost, keeping in due consideration the damages due to the further delay in delivery.

11. Guarantee Period:
All materials shall be guaranteed for 18 months from the date of delivery the materials at company site or 12 months from the date of equipment start-up, whichever is sooner.

12. Lifting Requirements (*Where applicable*):

- Cargos designed to be lifted from its lifting lugs 'above, underneath' shall be shipped pre-slung.
- Cargo to be attached with its proper designed lifting set. (i.e. slings, shackles, spreader bars…etc.), and provided with all test/inspection certificates of the lifting points (Lugs) and lifting sets.
- Otherwise, the cargos shall be provided with a Rigging Sketch document identifying the cargo weight, size, shape, center of gravity and recommended lifting attachments (i.e. slings, shackles, spreader bars,…etc.).
- Cargo Manufacture (Lift designers) shall consider all construction and operational risks and where possible design out risks.
- Any risks that cannot be designed out shall be effectively communicated through Lifting Precautions document identifying the relative hazards.
- Associated with the lifting operation and control measures recommended, and that document shall be provided with the cargo.
- Manufacturer shall consider in its lifting design/procedure how the load may be lifted from point of manufacture through the delivery via multiple carriers to end installation.

Purchase Order Terms & Conditions

1. Delivery Terms

- Any reference in the Purchase Order to "Incoterms"; shall mean **Incoterms 2020** and subsequent addenda thereto, all as per latest editions, as issued by the International Chamber of Commerce, prior to the date of the Purchase Order.

2. Drawings and Technical Data

- Any deviation from or modification to specifications or drawings is subject to Company's prior written consent. If the Supplier considers there is any omission, inconsistency or inaccuracy in such specifications or drawings, or that any modification shall be made, the Supplier shall notify Company in writing forthwith. Drawings, data, designs, inventories, and other technical information supplied by Company in connection with the Purchase Order shall be maintained in confidence by Supplier and shall not, without Company's prior written consent, be either disclosed to any third party or used by Supplier except in implementing the Purchase Order.
- Supplier shall when requested by Company provide drawings and technical data to Company for approval and/or record purposes. Any such approval shall not imply that Company has checked or is responsible for the accuracy of any drawings or technical data other than its own.

3. Liability and Risk

- The Supplier shall be liable for any loss or damage to the Materials, however caused, until delivered, when the risk shall pass to the Company. Unless otherwise specified in the Purchase Order, the definitions of "delivered" and "passing of risk"" shall be as stated in "Incoterms 2010 Edition" and the latest amendment thereto.

4. Health and Safety Requirements

- Supplier shall provide Company with Material Safety Data Sheets, which provide such information as is necessary about any Materials that have inherent properties which may give rise to any risk to health, safety or the environment, and information about any necessary condition of use of any Materials to ensure they may be used safely and without risk to health, safety or the environment. Supplier shall ensure such risk shall be considered across the full range of the Materials design, testing, use, setting, cleaning, maintenance, handling, processing, storage, transport, dismantling or disposal.

5. Inspection

- Materials furnished against this Purchase Order shall be the best of their respective kind and shall be subject to Company's inspection and approval at any reasonable time before or during manufacture, or after delivery at Company's site. Any such inspection or tests shall not in any way relieve Supplier from any of its obligations under the Purchase Order, or from those existing either at common law or by statue.
- 6. Audit
- To verify Supplier's compliance with this Purchase Order, Company may, at its sole expense, audit Supplier's records including all books, paper, documents, agreements and any other information that may have an effect on or be related to this Purchase Order. Supplier shall cooperate fully in furnishing all such requested records. Company shall have the right to obtain statements from any of Supplier's personnel who may have information necessary to conduct or complete any such audits. All audits will be conducted in accordance with generally accepted auditing standards and during normal business hours.

6. Quality

- The Parties agree that Company shall be entitled to evaluate, at any time, the conformity of the Supplier Quality System and of the Quality Systems of his Sub-supplier, if any, to the International Quality Assurance standards ISO 9001 or 9002 (or other as specified in the Purchase Order) and/or certifications recognized at an international level, and shall be entitled to request, as the case may be, a specific Quality Assurance plan.

7. Warranty

- Supplier guarantees full and complete warranties of title, fitness for purpose, compliance with applicable Company and Supplier specifications and merchantability for the Materials furnished against this Purchase Order. Substitution of the Purchase Order items (i.e. the replacement of specified items with similar items) is not permitted unless authorized in writing by Company.
- Without limitations, Supplier specifically guarantees the workmanship and material entering into the Materials furnished against the order and agrees to replace or repair, without cost to Company any Materials of which defective workmanship or material is found. Any reasonable expense incurred by Company to repair or remedy any deficiencies in the Materials supplied hereunder shall be promptly paid by Supplier. Transportation and handling charges for replacement and/or return of defective Materials are for Supplier's account.
- In case the Materials do not meet Company's requirements including short or over supply, Company shall have the right to:
- return the defected Materials at Supplier's expense for refund, or ask for immediate replacement at Supplier's expense.
- If the replacement Materials is not received within a reasonable time as agreed between the Parties or not in accordance with Company requirements; Company shall have the right to:
- request Supplier to refund previous payments,
- request Supplier to issue a credit memorandum for rejected items,
- deduct the value of the rejected materials from any current invoices or
- Liquidate the performance letter of guarantee.

8. Patents

- Supplier agrees to defend and hold Company harmless from all damages or costs (including legal costs) arising out of alleged patent infringement resulting from acceptance or execution of this Purchase Order. Supplier's obligations under this clause shall continue, notwithstanding the expiry, or earlier cancellation, of this Purchase Order.

9. Cancellation

- Company shall have the right to cancel all or any separable part of this Purchase Order by a written notice. Upon such cancellation, Supplier shall discontinue all work on Materials pertaining thereto, place no additional Sub-supplier orders and cancel existing Sub-supplier orders on the best possible terms. Pending Company's instructions Supplier shall preserve and protect Materials on hand, Materials in progress and completed Materials, both in its own and in its Sub-suppliers plant. Cancellation payment, if any, shall be agreed by both Parties, and shall generally bear the same proportionate relationship to the Purchase Order price as the work on Materials satisfactorily performed to the date of the cancellation bears to the entire Materials contracted for, less any sum of money paid to Supplier. Supplier shall not be entitled to any prospective profits or damages because of cancellation.

10. Default

- If Supplier breaches any provisions of this Purchase Order or fails to make satisfactory progress so as to endanger timely performance and does not correct such failure within ten (10) days after receipt of written notice from Company specifying such failure, Company shall have the right, in addition to any other rights or remedies it may have under this Purchase Order or by law, to cancel this Purchase Order for default by giving Supplier written notice.

11. Ethics

- All transactions shall be based strictly on service, quality and competitive price of Materials. Supplier shall not pay any salaries, commissions or fees, or make any payments or rebates to any employee or officer of Company, or designee employee or officer of Company, or favor any employee or officer of Company, or designee of any employee or officer of Company, with gifts or entertainment, of significant cost or value, or enter into any business arrangements with any employee or officer of Company other than as a representative of Company.

12. Anti-Corruption Undertakings

- Supplier shall conduct its operations in accordance with all applicable laws, rules, regulations and decrees of any governmental or regulatory body having jurisdiction over the supply of Materials and/or the territory where the supply of Materials is carried out. Supplier agrees that all invoices, financial settlements, billings and reports rendered to Company shall reflect properly the facts about all activities and transactions handled for the account of Company and those documents may be relied upon as being complete and accurate. Supplier shall not take any action on Company's behalf that would result in inadequate or inaccurate reporting of any assets, liabilities or transactions, which would violate any applicable laws. Supplier shall not make or give, either directly or indirectly, any improper payments of money or anything of value to a government official, political party or official thereof, or any candidate for political office, in connection with the Purchase Order. As a matter of corporate policy, Company expressly prohibits payment of bribes (including facilitation or "grease" payments) to any party by Supplier in relation to the Materials. Supplier agrees to notify Company promptly upon discovery of any instance where Supplier fails to comply with any provisions of this clause.

13. Assignment

- Supplier shall not assign this Purchase Order without the written consent of Company. No such assignment shall relieve Supplier of its obligations under this Purchase Order, nor obligate Company to pay any monies whatsoever other than the Purchase Order price. Company, upon written notice to Supplier, shall be entitled to assign this Purchase Order to any of its co-ventures or to any of its parent, affiliates, or subsidiary companies.

14. Sub-Supplier

- Supplier shall not sub-let the whole, or any part of the Materials, without the written consent of the Company, (not to be unreasonably withheld) and such consent, if given, shall not relieve Supplier from any liability or obligation under this Purchase Order and Supplier shall be responsible for the acts, defaults and neglects of any Sub-Supplier, its agents, servants, or personnel, as fully, as if they were the acts, defaults, and neglects of Supplier, its agents, servants, or personnel.

15. Indemnity

- Supplier shall indemnify and hold Company, its employees, Vendors, and agents harmless from and against any and all claims, suits, judgements, or expenses, including reasonable attorney's fees, which are based in whole or part upon breach of Supplier's warranties, or Supplier's negligence, including without limitation, claims, suits or judgements for personal injury, including death, or property damage arising out of or relating directly to indirectly to this Purchase Order.

16. Settlement of Disputes and Governing Law

- Amicable Settlement
- Any dispute, controversies or claims arising out of or relating to this Purchase Order, or the breach, cancellation or invalidity thereof shall first be settled amicably between the parties directly concerned, shall be resolved as follows:
- First: By discussions between the concerned Managers of Supplier and Company.
- Second: By discussion between the parties at the top management, level of Supplier and Company.
- Arbitration
- Any dispute, controversies or claims arising out of or relating to this Purchase Order, or the breach, cancellation or invalidity thereof that cannot be settled amicably within 30 days of giving notice of such event shall be finally settled under the Rules of Arbitration of the Cairo Regional Centre for International Commercial Arbitration by three arbitrators appointed in accordance with said Rules. The Award shall be final and binding on both Parties. The arbitration shall be held in Cairo, Egypt. The proceedings shall be conducted in the English language.
- Governing Law
- The laws of The Arab Republic of Egypt shall govern this Purchase Order"

17. Title

- Supplier warrants title, free and clear from all liens charges or other encumbrances, in respect of the Materials and all items comprised thereof, or intended therefore. Title in the Materials, shall pass to Company on either:
- a) Payment for the Materials (when title shall pass in proportion to the payments made thereof) or,
- b) Acceptance of the Materials by Company at the specified delivery point, whichever occurs first.
- Notwithstanding passage of title, (in whole or in part) on the occurrence of (a) above, risk shall remain with Supplier until delivery, or acceptance of the Materials, by Company, in accordance with the provisions of the Purchase Order, whichever shall be the later.
- The transfer of title in the product of the Materials and all items as aforesaid, shall in no way affect the Company rights under this Purchase Order, including limitation of/or the right to reject the same, where not in compliance with this Purchase Order. Title in the product of the Materials and any items as previously mentioned, which are rejected by the Company, shall revert immediately with Supplier.

18. Waiver

- None of the provisions of this Purchase Order shall be considered waived by the Company by the mere none practicing of the provision, unless the Company gives such waiver in writing. No such waiver shall be a waiver of any past or future default, breach or modification, of any of the terms, provisions, conditions or covenants of this Purchase Order unless expressly set forth in such waiver.

19. Force Majeure

- No failure or omission by either Party to carry out or observe any of the stipulations, conditions or obligations to be performed under this Purchase Order shall, except as herein expressly agreed to the contrary, give rise to any claim against such Party or be deemed to be a breach of the Purchase Order if such failure or omission arises from an event of Force Majeure. An event of Force Majeure shall mean expropriation or confiscation, orders of governmental authority, acts of war (declared or undeclared), insurrection, rebellion or sabotage, civil disturbances, strikes (except of the Supplier's own workforce), actions of the elements or other causes beyond the reasonable control of the Parties affected thereby but specifically excluding financial distress.
- If by any reason of Force Majeure either Party shall be prevented from executing or continuing to execute the Purchase Order, the Party so prevented shall forthwith give notice in writing to the other Party with details of such prevention, how delivery is affected and the reasons therefore. The obligations of the Parties as have been thus affected may be suspended for the duration of such prevention.
- In the event that delivery will be unacceptably delayed, then Company shall have the right to cancel the Purchase Order by giving written notice to Supplier. Upon such notice being given, the Purchase Order shall forthwith be determined without prejudice to the claim of any Party in respect of any antecedent breach thereof.

20. Notices

- All notices to Company required by this Purchase Order shall be given in writing and shall be delivered by hand against dated signature, facsimile or registered mail (return receipt or equivalent thereof is requested) to the address stated herein below. Notices delivered personally by hand shall be effective when delivered. Notices sent by registered mail shall be effective when received. Notices sent by facsimile shall be effective when sent provided electronic confirmation of transmission is received. Either Party may, by written notice to the other Party, change its address. Any such notice shall bear the appropriate Purchase Order number.
- Notices to Company:
  - Gulf of Suez Petroleum Company (GUPCO)
  - Palestine Street, 4th Sector
  - New Maadi, Cairo, Egypt
  - P.O. Box 2400
  - Cairo, Egypt
  - Attention: Chairman' s Assistant for PSCM
  - Fax: (202) 2706-1761 or 2702-1286

21. Confidentiality

- Supplier undertakes and will ensure that all of its personnel shall keep confidential and shall not use or disclose to any third party any technical information or data in connection with the Materials or execution of this Purchase Order. Supplier will treat such technical information or data as confidential and will adopt and follow reasonable precautionary measures in handling them to avoid any third party obtaining any data or information concerning the Materials. Such obligation shall survive the expiration or termination of this Purchase Order.
- Supplier warrants that all Supplier's personnel shall be under explicit instructions to not disclose any such information or data to third parties. All information provided by Supplier to Company pursuant to this Purchase Order should remain the property of Company.

22. Entire Agreement

- These terms and conditions and the Purchase Order shall (unless expressly agreed otherwise in writing by the both Parties) comprise all the entire terms and conditions of the Purchase Order in relation to the subject matter of the Purchase Order and the Supplier terms and conditions of contracting are expressly excluded. The Purchase Order and these terms and conditions shall therefore take priority over any other arrangements, communications (whether verbal or written), or any other documents.